

**IN THE DISTRICT COURT OF APPEAL
FIRST DISTRICT, STATE OF FLORIDA**

MARC M. MOSZKOWSKI,

Appellant,

v.

DEEPGULF, INC. and TOKE OIL AND GAS, S.A.,

Appellee.

CASE NO.: 1D2025-2912

Lower Tribunal Case No.: 2018-CA-000543 (Div. "E")

DOCKETING STATEMENT (PRO SE)

1. Appellant

Marc Moszkowski

Le Verdos

83300 Châteaudouble, France

Email: m.moszkowski@deepgulf.net

Telephone: +33 4 89 53 23 44 (France) / +1 251 300 4820 (U.S.)

Appellant appears pro se.

2. Appellees

(a) DeepGulf, Inc.

Florida corporation

7205 Suman Lane Unit A

Pensacola, FL 32526.

Registered agent: Rustin Ray Howard, same address

(b) “Toke Oil and Gas S.A.”

Alleged foreign co-plaintiff.

No verified foreign domicile, registration, or corporate documentation has ever been produced since approximately 2009. A 2020 proceeding before the same judge likewise found no proof of foreign domicile.

(c) Counsel for Appellees

Braden K. Ball, Litvak, Beasley, Wilson & Ball, LLP

40 Palafox Place, Suite 300

Pensacola, FL 32502.

No substitution or withdrawal has been filed in the lower court.

3. Nature of the Case Below

Civil action concerning internal corporate governance, claimed accounting discrepancies, and alleged financial obligations between DeepGulf, Inc. and the purported entity “Toke Oil and Gas S.A.”

The action was removed to the U.S. District Court (N.D. Fla.) where significant litigation occurred, then remanded three years later based on an unproven allegation of foreign corporate status—contradicting prior records in related proceedings.

4. Date of Final Judgment

September 3, 2025

5. Date Notice of Appeal Filed

Filed **October 27, 2025** (Escambia County Clerk stamp)

6. Relief Sought on Appeal

Vacatur or reversal of the September 3, 2025, Final Judgment and of any related orders entered in violation of constitutional, statutory, or procedural due-process guarantees.

7. Representation Below

Appellant appeared pro se.

8. Indigency / Filing Fee

- a. Motion to Determine Indigent Status filed Oct. 27, 2025.
- b. Clerk's Affidavit (Nov. 18, 2025) determined Appellant indigent, without notice to Appellant.

c. Appellees moved in opposition (Nov. 21, 2025).

d. Appellant filed response and sanctions motion (Nov. 24, 2025).

9. Transcript Information

No certified transcript exists of trial proceedings or of Rustin Howard's testimony. Court Reporter confirmed none was ordered or prepared.

10. Briefing Schedule Contact

Send notices to:

m.moszkowski@deepgulf.net

Le Verdos, 83300 Châteaudouble, France

11. Other Related Cases

(1) Federal Proceedings

- U.S. District Court, N.D. Fla., No. **3:18-cv-01466**
- U.S. Court of Appeals for the Eleventh Circuit, No. **20-12897**

(2) Foreign proceedings

A principal shareholder of Appellee obtained a default judgment in France and enforced a lien on Appellant's home and bank account. Appellant was unable to appear because pro se representation is prohibited and no notice of hearing was served. Judgment was entered in absentia, and legal-aid counsel was appointed at the liquidation stage.

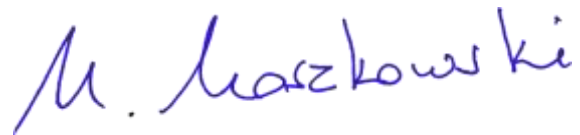
Respectfully submitted this 1st day of December, 2025.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France



CERTIFICATE OF SERVICE

I hereby certify that, on this 1st day of December 2025, a true and correct copy of this Docketing Statement has been furnished by electronic mail to Braden K. Ball, Jr., last known counsel for Appellees, through the Florida Courts E-Filing Portal.



SUPPLEMENTAL DECLARATION IN SUPPORT OF INDIGENT STATUS

I, Marc Moszkowski, declare under penalty of perjury:

1. Income

Gross monthly income: **€874.93** (approx. **US\$1,006**).

No savings, securities, or liquid assets.

2. Asset Seizure

A principal shareholder of Appellee DeepGulf, Inc. enforced a French judgment lien on Appellant's residence and bank accounts. Assets remain frozen.

3. Mediation Fee

Appellant was financially unable to pay the \$900 mediation fee; the court denied relief though Appellees were responsible for advancement under DeepGulf's bylaws.

4. Physical and Logistical Barriers

Appellant suffers from documented medical conditions and resides ~5,000 miles from Pensacola. Appellant sought remote appearance under Rule 2.530 with medical proof and indigency documentation. Appellees opposed; the court denied remote appearance without

required written findings.

5. Effect on Trial

Appellant could not attend trial; judgment entered by default without Appellant's participation. A contempt finding resulted.

6. Comparable Foreign Determination

In related French proceedings, Appellant was judged in absentia because pro se representation is legally prohibited and Appellant was financially unable to retain counsel. No hearing notice was ever served, and counsel was appointed only after the default judgment—at the liquidation stage—based on a formal judicial finding of indigency. The resulting judgment led to seizure of Appellant's residence and bank account. Appellant's financial condition has not improved since that determination, and the circumstances of indigency remain identical in the present appeal.

Executed this 1st day of December 2025.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

Le Verdos

83300 Châteaudouble, France

